FGC ESTATE TRUST
and
NORAH MADZIWANYIKA
and
SICHONI TAKOLEZA
and
SHINGAI MUTUMBWA
and
MONALISA CHIDAVAENZI
and
AGABUS CHIDAVAENZI
versus
OLIVER MASOMERA
and
MASTER OF THE HIGH COURT N.O

HIGH COURT OF ZIMBABWE
PHILLIPS J
HARARE; 15, 23 June, 18 August 2026

Court Application: Opposed

J.J Chirambwe, for the Applicants
R.Mambwe, for the 1st Respondent

PHIILIPS J: This is a court application for the removal of an executrix dative. I struck off the application from the roll having upheld all the points in limine that had been raised by the first respondent and the Applicants have sought the court's reasons. These are they.

Factual Background

The applicants are the biological children of the late Francis Godzunga Chidavaenzi. It is alleged that the executor has failed to properly appreciate, discharge his mandate which has culminated in attempts to deprive the rightful beneficiaries and creditors of their lawful entitlements. On 20 September 2024, the first applicant duly lodged a creditor's claim, wherein it averred that certain

immovable properties had been donated to it by the late Francis Godzunga Chidavaenzi in terms of the Trust Deed registered under MA 1596/21.

Relief Sought

1. The application succeeds.
2. The appointment of Oliver Masomera as the Executrix Dative of Estate late Francis Godzunga Chidavaenzi be and is hereby set aside.
3. A new Executrix dative be and is hereby appointed to administer the Estate of late Francis Godzunga Chidavaenzi.
4. The first to second Respondents to pay costs on an Attorney and client scale jointly and severally one paying the other to be absolved.

Preliminary Points

1. The first respondent raised a point *in limine* on that the application is defective, on the basis that it is set on two divergent causes of action without properly pleading the same. It was submitted that paragraph 3, page 9 of the record, the applicants made mention that they brought their application in terms of the common law then on paragraph 3.3 the same application makes mention that the application is also being brought in terms of section 117 of the Administration of Estates Act [*Chapter 6:01*]. The 1st respondent argued that section 117 (1) provides that where a party intends to proceed in terms of the common law but it does not give a party the right to seek that relief, to the extent that the parties can use section 117(1) of the Administration of Estate Act to approach the court as such the application itself is defective. The 1st respondent placed reliance on the case of *Muchini v Adams* 2013 ZLR (1) p64 for the principle that an application stands or falls on its founding affidavit. In response the applicants argued that the points in limine have been taken only aiming to avoid the substantive issues and argued that there is impropriety in the 1st respondent raising points in limine at the door of the court as such the party does not have the right to deprive another party of notice. The applicants submitted that the first respondent suffers a clear handicap of failing to understand the paragraphs as they are, paragraph 3.3 clearly specifies, it acknowledges that any applicant

is clothed to approach the court for removal of an executor and page 17 of the record states the grounds for removal.

It is trite law that in all applications, an applicant stands or falls on his founding affidavit. This legal point was emphasised in *Austerlands (Pvt) Ltd* v *Trade and Investment Bank & 2 Ors*, SC 92/05 where the court said:

> "The general rule that has been laid down in this regard is that an application stands or falls on the founding affidavit and the facts alleged in it. This is how it should be because the founding affidavit informs the respondent of the case against the respondent that the respondent must meet."

Hebstein and Van Winsen in their book **Civil Practice of Superior Courts in South Africa, 3rd Edition** at p80, the learned authors stated that:

> "The general rule…which has been laid down repeatedly is that an applicant must stand or fall by his founding affidavit and the facts alleged therein, and that, although sometimes it is permissible to supplement the allegations contained in that affidavit, still the main foundation of the application is the allegation of facts stated therein, because these are the facts which the respondent is called upon to either affirm or deny."

It is my finding that the application that is before this court is in goes against these assertions which state that an applicant stands or falls on its founding affidavit. The point here is that the founding affidavit has as its basis of the application, two causes of action which do not plead the same as submitted by the counsel for the first respondent. One cannot bring a hybrid application as the requirements of each application are different. In the circumstances, the point *in limine* is sustained.

2. Secondly, the 1st respondent raised *in limine* that the applicants' draft relief is defective and is jurisdictionally impermissible. It was submitted that page 66 of the record shows that the applicants are seeking for a new executor to be appointed, and the 1st respondent's argument was that the legislation gives such power to the Master of the High Court. Therefore, in terms of the Administration of Estate Act, it was argued that it is improper for the applicants to ask the court to usurp the Master's power. In response the applicants argued that point *in limine* should not be taken as a matter of fashion, it should have the ability to dispose of the matter. It was also submitted that the draft order is a wish-list and the applicants have no problem with the court not granting paragraph 3 page 66.

I have to agree with the first respondent submission; the court has no authority to appoint a new executor as it is within the powers of the Master of the High Court as provided for in terms of *section 29 of the Administration of Estate Act*. I am of the view, however, that the point *in limine*, if it succeeded is not dispositive of the matter, as such the remedy applicable would be to expunge the offending portion of the draft order from the record. However, in the event that the court allows for the portion of the draft order to be expunged of the paragraph 3 of the draft order, this will still not cure the fact that the application before me is defective, for that reason I am inclined to rule that the application be struck off to allow the applicants an opportunity to correct what requires correction.

3. The third point *in limine* which the 1st respondent raised was the issue of non-joinder of interested parties. The 1st respondent made reference to page 18 of the record, wherein the applicants made mention of Joselyn and Brian Madzivanyika whom they believe have an interest in the estate but are is not parties to the proceedings. It was submitted that the non-joinder of the interested parties goes to the root of the application as the people who are also beneficiaries to the estate are not before the court. In response the applicants argued that rule 32 (11) entails that a non-joinder cannot be fatal to any matter and that rule 32(12) provides for a court to make an order for the joinder of parties. It was also submitted that s117 of the Administration of Estates Act does not state that all beneficiaries ought to be joined. The applicants argued that their case is against the first respondent and further that whether or not Brian and Joselyn are joined has nothing to do with the conduct of the first respondent.

The joinder of parties to pending legal proceedings is regulated in terms of Rule 32 of the High Court Rules,2021. Rule 32 (12) provides that:

> "At any stage of the proceedings in any cause or matter the court may on such terms as it thinks just and either on its own initiative or on application –
>
> (a)…….....
>
> (b) order any person who ought to have been joined as a party or whose presence before the court is necessary to ensure that all matters in dispute in the cause or matter may be effectually and completely determined and adjudicated upon, to be added as a party..."

The court had sight of page 18 paragraph 7.4 of the record which is couched as follows:

> "…. Brian Madzivanyika is benefiting disproportionately and unlawfully from estate assets to the exclusion of other beneficiaries. In particular, he resides at Milwood court flats, stand number 212, Karoi township, without paying any rentals to the estate. He has occupation and control over Omega farm, which is currently non-productive and generating no income for the estate. He is further utilising a motel known as Elephants walk being Lot 1 of st Mawes, without paying rent or accounting any income derived therefrom."

The rationale behind rule 32 is to ensure that the court is better placed to deal with the matter at hand. Thus, from this, paragraph alone (on page 18) it is clear that indeed Brian Madzivanyika is a beneficiary to the estate and has an interest to the estate but he is not a party to these proceedings as such he ought to have be joined as a party to the proceedings. Thus, the point *in limine* on non-joinder is hereby upheld.

4. *Lies pendens*

The 1st respondent argued that the applicants said they were not happy with the 1st respondent decision. However, the Act provides for self-supporting mechanisms when someone in applicant's position is not happy there is procedure to follow. The first respondent made reference to the case number HCHF6061/25; thus, the applicants still have a pending application which has not been resolved. In response the applicant argued that the first respondent does not address the averments on lies pendens, and that it is this was not an absolute bar. Further the applicant argued that on page 83 an application for review in terms of rule 62, of a decision of October 2025, has nothing to do with the first respondent's removal from the office. The applicants' position was that the application is not before the court and that they are different causes of action.

Herbstein and Van Winsen in the **Civil Practice of the High Courts and the Supreme Court of Appeal of South Africa, 3rd ed,** at p 605 it was stated that:

> "If an action is already pending between parties and the plaintiff therein brings another action against the same defendant on the same cause of action and in respect of the same subject matter, whether in the same or a different court, it is open to such defendant to take the objection of lis pendens, that is, another action respecting the identical subject matter has already been instituted, whereupon the court, in its discretion, may stay the second action pending the decision in the first action."

The requirements for the defence of *lies pendens* were set out in the case of *Gatsi v D Med Health Care (Pvt) Ltd, HH259-22* p3, as follows:

> "It is therefore trite that for the defence of lies pendens to succeed, the following requirements must be met.
>
> a. There must be another pending matter
>
> b. Between the same parties
>
> c. On the same cause of action
>
> d. In respect of the same subject matter."

I accordingly find that these requirements are met.

5. The first respondent raised in limine that; the first, fifth and sixth applicants are not properly before this court on the basis of authentication. The first respondent argued that the first applicant deposed to affidavits without saying that she's deposing on behalf of the trust and the fifth applicant. In support of this contention, reliance was placed on the decision in *Proser & 35 Ors v Zisco Steel* HH201/93. Accordingly, the 1st respondent submitted that the application is fatally defective and ought to be struck off on the basis that it was not properly brought before the court.

In the case of *The Trustees of the Makomo E and Others v The Minister of Lands and Rural Resettlement and Another* HH556/16 the court stated that:

> "On whether the deponent had authority to aver to the affidavit, Mr. Uriri submitted that the deposition to the statement that "l am a trustee of Makomo Chimanimani Share Ownership Community Trust and l am duly authorised by the applicant to depose to this affidavit it on behalf of the applicants" is sufficient. There is no legal requirement to attach resolutions to prove authority. I agree with Mr. Uriri. That statement in itself established the deponent's authority; in any case the applicants went on to then produce the resolution."

In *casu*, the deposition on page 6 paragraph 1. is couched as follows: "*I the undersigned Norah Madziwanyika, do hereby make oath and state that…..*" the deposition does not make mention that she is acting on behalf of the trust itself and the other applicants. This is not sufficient to show that she deposing on behalf of the others.

ACCORDINGLY, IT IS ORDERED THAT:

1. The 1st Respondents preliminary objections are all upheld.
2. The application be and is hereby struck off the roll to enable the Applicants to comply accordingly.
3. The Applicants are to pay the costs of suit on a Legal Practitioner and client scale. The one paying with the others being absolved.

PHILLIPS J:…….

Zuze Law Chambers, First Respondent Legal Practitioners
Kwenda & Chagwiza Attorneys at Law, Applicants' Legal Practitioners